

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Gabriella Carpenter	Team: Squad #13	CCRB Case #: 201702558	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 04/02/2017 5:35 PM	Location of Incident: Eastern Parkway and Howard Avenue; 73rd Precinct stationhouse	18 Mo. SOL 10/2/2018	Precinct: 73		
Date/Time CV Reported Tue, 04/04/2017 11:04 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/04/2017 11:04 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Peguero	08429	957945	073 PCT
2. POM Tosares Korchitmet	00799	942021	073 PCT
3. POM Benjamin Maldonado	31350	942106	073 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Mario Michel	01074	931826	073 PCT
2. POM Michael Anes	16856	960163	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Peguero	Abuse: At Eastern Parkway and Howard Avenue in Brooklyn, PO Christopher Peguero seized § 87(2)(b)'s property.	A . Substantiated
B . POM Benjamin Maldonado	Abuse: At the 73rd Precinct stationhouse, PO Benjamin Maldonado did not process § 87(2)(b)'s complaint regarding officers.	B . Unsubstantiated
C . POM Christophe Peguero	Discourtesy: At the 73rd Precinct stationhouse, PO Christopher Peguero spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Benjamin Maldonado	Abuse: At the 73rd Precinct stationhouse, PO Benjamin Maldonado threatened to arrest § 87(2)(b)	D . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed a complaint with the CCRB over the phone on April 4, 2017.

On April 2, 2017, at approximately 2:00 p.m., § 87(2)(b) was walking on Eastern Parkway at Howard Avenue in Brooklyn when a police car pulled up next to him. Police Officer Christopher Peguero of the 73rd Precinct stepped out of the car and asked for § 87(2)(b)'s ID, telling § 87(2)(b) that he had dropped a chicken bone. Police Officer Tosares Korchitmet, who was driving, remained in the car. § 87(2)(b) handed PO Peguero his ID and then walked away to look for the bone; while he was looking for the bone less than a block away from the officers, the officers drove away with § 87(2)(b)'s ID and the summons they were preparing for him (**allegation A**). § 87(2)(b) went to the 73rd Precinct stationhouse and waited for the officers so that he could get his ID back. While he was there, he asked Police Officer Benjamin Maldonado how to file a complaint against the officers and PO Maldonado pointed to a CCRB poster on the wall without offering to file the complaint for § 87(2)(b) (**allegation B**). When PO Peguero arrived at the stationhouse, he said, "Take your fucking ID and get the fuck out of here" and called § 87(2)(b) a "fucking asshole" (**allegation C**). § 87(2)(b) did not take the summons PO Peguero tried to hand him for littering until PO Maldonado said, "Lock him up if he don't take the ticket" (**allegation D**). § 87(2)(b) took the summons and his ID and left the stationhouse.

PO Korchitmet did not prepare a memo book entry about the incident (**allegation E**).

Mediation, Civil and Criminal Histories

- § 87(2)(b) refused mediation § 87(2)(b)
- As of June 5, 2017, no notice of claim has been filed with the comptroller's office in regard to this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b)
- PO Peguero has been a member of the service for two years and has not had any other CCRB allegations pled against him.
- PO Maldonado has been a member of the service for ten years and has had seven other CCRB allegations pled against him in three cases. § 87(2)(g)
§ 87(2)(b)
 - One threat of arrest allegation was pled against him in CCRB 201504620 that was withdrawn.
 - One discourtesy (word) allegation was pled against him in CCRB 201504620 that was withdrawn.
- PO Korchitmet has been a member of the service for ten years and has had one other CCRB allegation pled against him.

Findings and Recommendations

Allegations not pleaded

- **Offensive Language:** § 87(2)(g)
§ 87(2)(b) stated during his phone statement that PO Peguero called him a "black asshole" in the stationhouse, then stated during his sworn statement that he could not recall whether PO Peguero called him a "nigger" but did not allege that PO Peguero

called him a “black asshole.” Finally, during a phone call after his interview, § 87(2)(b) stated that he did not think that PO Peguero made either racial remark to him.

Allegation A: Abuse of Authority: At Eastern Parkway and Howard Avenue in Brooklyn, PO Christopher Peguero seized § 87(2)(b) s property.

§ 87(2)(b) testified that he was eating chicken wings while walking on Eastern Parkway at Howard Avenue in Brooklyn and putting the bones into a bag a bag he was carrying when PO Peguero and PO Korchitmet drove up next to him (BR 01 and BR 02). PO Peguero got out of the car and asked § 87(2)(b) for his ID. § 87(2)(b) asked why he needed it and PO Peguero told him that he had thrown a chicken bone on the ground as he was walking. § 87(2)(b) handed PO Peguero his ID and said that he would go look and pick up the bone if he had dropped one. § 87(2)(b) walked back in the direction he had come from to look for the bone. About thirty seconds later, the officers drove away. § 87(2)(b) walked to the 73rd Precinct stationhouse to try to get his ID back and waited for about an hour for PO Peguero to return with his ID.

PO Peguero testified that he saw § 87(2)(b) throw at least one chicken bone on the ground while crossing Eastern Parkway at Howard Avenue in Brooklyn (BR 03). Both officers got out of the car and PO Peguero asked § 87(2)(b) for his ID. § 87(2)(b) asked why and PO Peguero said it was because of the chicken bone. § 87(2)(b) handed PO Peguero his ID, said, “You can keep that,” and then walked away. PO Peguero thought that § 87(2)(b) was trying to leave the scene although he stated during his interview that § 87(2)(b) was not free to leave. PO Peguero said, “Sir,” several times, and then the officers left with § 87(2)(b) s ID and the summons they were writing without pursuing him. PO Peguero did not do anything else to attempt to stop § 87(2)(b).

§ 87(2)(g): he could not recall whether he also got out of the car, he thought that § 87(2)(b) was free to leave because he had no open warrants, and he thought that the officers left without pursuing § 87(2)(b) because they could mail the summons to the address on his ID (BR 04).

PO Peguero’s memo book states that § 87(2)(b) told the officers, “You can keep my ID” (BR 07).

When officers write summonses returnable to Criminal Court, they are required to request that the violator provide identification, give the violator the part of the summons labeled “Criminal Court,” and request that the violator sign the bottom of the summons to acknowledge receipt. Patrol Guide Procedure 209-09.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **allegation A be closed as substantiated.**

Allegation B: Abuse of Authority: At the 73rd Precinct stationhouse, PO Benjamin Maldonado did not process § 87(2)(b)'s complaint regarding officers.

§ 87(2)(b) testified that while he was waiting at the stationhouse, he spoke to PO Maldonado. PO Maldonado was identified by the physical description § 87(2)(b) gave, by § 87(2)(b)'s statement that the officer was seated behind the desk, and by § 87(2)(b)'s statement that it was the same officer to whom he described the officer who took his ID. § 87(2)(b) told PO Maldonado that he wanted to file a complaint about the officer who took his ID. PO Maldonado pointed to the CCRB poster on the wall but did not offer to file a complaint for § 87(2)(b). § 87(2)(b) took out his phone and took a picture of the CCRB poster. Sgt. Michel, who was assigned to the desk, asked § 87(2)(b) what was going on. § 87(2)(b) explained the situation with the officers and Sgt. Michel told him not to worry and that he would get his ID back.

PO Maldonado testified that § 87(2)(b) entered the stationhouse yelling that an officer had taken his ID (BR 05). PO Maldonado, who was working at the desk as the T/S operator, determined which officer took the ID, and then he called PO Korchitmet and said to bring the ID to the stationhouse. § 87(2)(b) never said that he wanted to file a complaint against officers and PO Maldonado did not see him look at the CCRB poster in the stationhouse.

Sgt. Michel testified that he could not recall a man coming into the stationhouse and saying that officers had kept his ID after stopping him, nor did he recognize § 87(2)(b) from the photo of him taken before his CCRB interview (BR 06). He could not recall a civilian asking to file a complaint against officers, but if a civilian had wanted to file a complaint, Sgt. Michel would have presented them with the different methods available for filing a CCRB complaint. He could not recall a civilian taking a photo of the CCRB poster in the stationhouse or asking the civilian why they were taking a photo and what was going on.

PO Peguero and PO Korchitmet were not present for these allegations.

§ 87(2)(b) was not able to provide the photo he took of the CCRB poster.

§ 87(2)(g)

§ 87(2)(g) it is recommended that **allegation B be closed as unsubstantiated.**

Allegation C: Discourtesy: At the 73rd Precinct stationhouse, PO Christopher Peguero spoke discourteously to § 87(2)(b)

Allegation D: Abuse of Authority: At the 73rd Precinct stationhouse, PO Benjamin Maldonado threatened to arrest § 87(2)(b)

§ 87(2)(b) testified that after he waited for about an hour for the officers to bring his ID back to the stationhouse, PO Peguero came inside the stationhouse and said, "Take your fucking ID and get the fuck out of here," or something similar. PO Peguero tried to hand § 87(2)(b) a summons for littering but § 87(2)(b) initially took only his ID. § 87(2)(b) originally stated that PO Peguero said, "Take your ticket, asshole," but later stated that PO Peguero only used profanity when telling him to take his ID. PO Maldonado told PO Peguero, "Lock him up if he don't take the ticket," so § 87(2)(b) took the summons and left the stationhouse.

PO Peguero testified that he and PO Korchitmet both went inside the stationhouse to return § 87(2)(b)'s ID. He could not recall if other officers were present for their conversation with § 87(2)(b). PO Peguero explained to § 87(2)(b) why he was being issued a summons, and then gave him the summons and his ID. § 87(2)(b) was angry and said that he was going to file a CCRB complaint, then left. The officers did not argue with § 87(2)(b) and PO Peguero spoke calmly to him. § 87(2)(b) used profanity but the officers did not. No officer told § 87(2)(b) that he would be arrested and § 87(2)(b) could not have been arrested for not taking the summons.

PO Maldonado testified that he thought that PO Peguero gave § 87(2)(b) his ID outside because he did not see PO Peguero enter the stationhouse. He was not present for the conversation when PO Peguero returned the ID, he did not know which officers were present, and he could not see or hear the conversation. He did not hear an officer use profanity toward § 87(2)(b) nor did he say, or hear another officer say, that he would be arrested if he did not take the summons.

PO Korchitmet testified that he did not go into the stationhouse with PO Peguero and he could not see or hear anything happening inside. PO Peguero did not tell him what had happened in the stationhouse.

Sgt. Michel could not recall the incident, including PO Peguero coming to the stationhouse to return § 87(2)(b)'s ID.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **allegations C and D** be closed as unsubstantiated.

§ 87(4-b), § 87(2)(g)

